

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rolando Vasquez	Team: Squad #13	CCRB Case #: 202001377	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 02/13/2020 5:22 PM	Location of Incident: 14th Street–Union Square Subway Station	18 Mo. SOL 3/30/2022	Precinct: 13		
Date/Time CV Reported Tue, 02/18/2020 9:34 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 02/18/2020 9:34 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Rachid Lora	00810	945927	TB DT04
2. POM Leonel Pena	15662	923459	TB DT04

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Andre Andujar	29015	944003	TB DT04

Officer(s)	Allegation	Inv. Div. Recommendation
A . POM Leonel Pena	Abuse: Police Officer Leonel Pena refused to provide his name to § 87(2)(b)	A . Miscellaneous - Subject Retired
B . POM Leonel Pena	Abuse: Police Officer Leonel Pena refused to provide his shield number to § 87(2)(b)	B . Miscellaneous - Subject Retired
C . POM Leonel Pena	Force: Police Officer Leonel Pena used physical force against § 87(2)(b)	C . Miscellaneous - Subject Retired
D . SGT Rachid Lora	Force: Sergeant Rachid Lora used physical force against § 87(2)(b)	D . Unfounded
E . SGT Rachid Lora	Abuse: Sergeant Rachid Lora refused to provide his name to § 87(2)(b)	E . Unsubstantiated
F . SGT Rachid Lora	Abuse: Sergeant Rachid Lora refused to provide his shield number to § 87(2)(b)	F . Unsubstantiated
G . SGT Rachid Lora	Abuse: Sergeant Rachid Lora interfered with § 87(2)(b) use of a recording device.	G . Substantiated
H . SGT Rachid Lora	Abuse: Sergeant Rachid Lora threatened to arrest § 87(2)(b)	H . Substantiated

Case Summary

On February 18, 2020, § 87(2)(b) filed this complaint on the CCRB's website.

On February 13, 2020, at approximately 5:22 p.m., § 87(2)(b) began recording Police Officer Leonel Pena and Sergeant Rachid Lora, both of Transit District 4, inside the 14th Street–Union Square Subway Station in Manhattan. § 87(2)(b) asked PO Pena for his name and shield number, which he refused to provide (**Allegations A and B: Abuse of Authority, Miscellaneous – Subject Retired**). PO Pena and Sgt. Lora used physical force against § 87(2)(b) (**Allegation C: Force, Miscellaneous – Subject Retired; Allegation D: Force, Unfounded**). § 87(2)(b) asked Sgt. Lora for his name and shield number, which Sgt. Lora refused to provide (**Allegations E and F: Abuse of Authority, Unsubstantiated**). Sgt. Lora interfered with § 87(2)(b) use of a recording device and threatened to arrest him (**Allegation G: Abuse of Authority, Substantiated; Allegation H: Abuse of Authority, Substantiated**). No arrest or summons resulted from this incident.

§ 87(2)(b) recorded the incident on his cell phone and provided the recording to the CCRB (**Board Review 01**). The video is attached to IA #9 and summarized in IA #10 (**Board Review 02**). BWC footage also captured this incident (**Board Review 03-05**). The BWC videos are attached to IAs #67-69 and summarized in IAs #70-72 (**Board Review 06-08**).

Findings and Recommendations

Allegation A – Abuse of Authority: Police Officer Leonel Pena refused to provide his name to

§ 87(2)(b)

Allegation B – Abuse of Authority: Police Officer Leonel Pena refused to provide his shield number to

§ 87(2)(b)

Allegation C – Force: Police Officer Leonel Pena used physical force against

§ 87(2)(b)

In § 87(2)(b) cell phone recording, beginning at the 00:05 minute-mark of the media player timestamp, visible at the bottom of the screen, PO Pena, Sgt. Lora, and Police Officer Andre Andujar, also of Transit District 4, are standing in the subway station. § 87(2)(b) asks what the officers are doing in the station. Sgt. Lora tells § 87(2)(b) to step back and asks what he is doing. § 87(2)(b) asks Sgt. Lora if he will issue a summons to someone who cannot afford the fare. Sgt. Lora says he does not issue summonses because he is a supervisor. § 87(2)(b) asks PO Pena if he issues summonses. PO Pena says he does. § 87(2)(b) asks if he will issue a summons to someone who cannot afford the fare. PO Pena says, "I don't know, we'll see, we'll find out, we have to investigate it first." § 87(2)(b) asks how much the summons is. PO Pena says it's \$100 depending on what someone does. § 87(2)(b) asks if he wakes up to write poor people summonses. PO Pena says, "Yes, that's right, that's why I woke up this morning," and walks away from § 87(2)(b). At 01:03, § 87(2)(b) asks PO Pena for his name and shield number. PO Pena gets closer to § 87(2)(b) and says, as the camera loses sight of him, "Right there." § 87(2)(b) asks PO Pena if he is shoving him. PO Pena says he is not shoving him. There is no evidence in the recording that PO Pena shoved § 87(2)(b). At 02:12, PO Pena puts on a hat that displays his shield number.

§ 87(2)(b) statement was generally consistent with the cell phone recording (**Board Review 09**). He said he was commuting home through the subway station when he saw three officers standing together in an alcove, watching a turnstile area. § 87(2)(b) who was alone, began recording the officers on his phone. § 87(2)(b) stated that as he conversed with the officers, PO Pena and Sgt. Lora became aggressive—they raised their voices and spoke in an angry tone—while § 87(2)(b) remained calm. He asked PO Pena for his name and shield number. PO Pena's shield and name plate were visible on his uniform, but he did not verbally provide the requested information to § 87(2)(b). PO Pena then bumped his chest against § 87(2)(b) chest, like he was aggressively trying to invade § 87(2)(b) personal space. It did not seem like PO Pena was trying to physically move § 87(2)(b) back and it did not cause § 87(2)(b) to move back.

On October 23, 2020, the NYPD Department Advocate's Office provided confirmation that PO Pena had retired from service (**Board Review 10**).

§ 87(2)(g) it is recommended that **Allegations A through C** be closed as **Miscellaneous – Subject Retired**.

Allegation D – Force: Sergeant Rachid Lora used physical force against § 87(2)(b)
§ 87(2)(b) testified that Sgt. Lora approached him and used his chest to bump § 87(2)(b) chest. Sgt. Lora did this with greater force than PO Pena, and this chest bump caused § 87(2)(b) to involuntarily step back. § 87(2)(b) did not sustain any physical injuries.

In the cell phone recording, beginning at the 01:12 minute-mark of the media player timestamp, visible at the bottom of the screen, § 87(2)(b) asks Sgt. Lora if he saw PO Pena bump into him (**Board Review 01**). Sgt. Lora says, "Actually, no I didn't. He didn't bump into you." § 87(2)(b) says, "Well did you see it? Or he didn't bump into me? Because if you didn't see it, you can't say what happened." Sgt. Lora, stepping closer to § 87(2)(b) says he saw what happened, that PO Pena did not bump into § 87(2)(b) and that PO Pena was standing as close to § 87(2)(b) as he (Sgt. Lora) currently is. Sgt. Lora's nameplate and shield number are visible. At 01:27, § 87(2)(b) asks Sgt. Lora if he is touching him. Sgt. Lora responds, "No. Are you touching me?" § 87(2)(b) says, "You just walked right into my face." Sgt. Lora says, "Okay, have a nice day, sir, have a nice day," and walks away. Aside from § 87(2)(b) asking Sgt. Lora if he was touching him, the video does not present any evidence that Sgt. Lora bumped § 87(2)(b) backwards. The perspective of the camera remains steady after Sgt. Lora walks toward § 87(2)(b).

Sgt. Lora testified that he, PO Pena, and PO Andujar were posted inside the subway station when § 87(2)(b) approached them and began complaining about officers issuing summonses to people who could not afford to pay the subway fare (**Board Review 11**). § 87(2)(b) was about six feet away from the officers as he recorded and complained about the issuance of summonses. Sgt. Lora told § 87(2)(b) to back up and record. Sgt. Lora denied making physical contact with § 87(2)(b) and denied using any force against him.

Due to Sgt. Lora's closeness to the camera, the cell phone video does not definitively prove whether Sgt. Lora made any physical contact with § 87(2)(b). However, the picture in the recording remains steady throughout this portion of the incident and the video does not otherwise provide any indication that § 87(2)(b) was bumped or pushed back by Sgt. Lora. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation D** be closed as **unfounded**.

Allegation E – Abuse of Authority: Sergeant Rachid Lora refused to provide his name to

§ 87(2)(b)

Allegation F – Abuse of Authority: Sergeant Rachid Lora refused to provide his shield number to § 87(2)(b)

Allegation G – Abuse of Authority: Sergeant Rachid Lora interfered with § 87(2)(b) use of a recording device.

In the cell phone recording, beginning at the 01:32 minute-mark of the media player timestamp, visible at the bottom of the screen § 87(2)(b) asks Sgt. Lora for his name and shield number. At 01:34, Sgt. Lora says, "Right here, look. Put your camera down and get it," and shows § 87(2)(b) his shield, before his hand appears over § 87(2)(b) phone blocking the camera view. Sgt. Lora

lifts his shield toward § 87(2)(b) to display his shield again, however, the camera is oriented upward and only the top of the shield is captured; Sgt. Lora's name plate and shield number are not visible. § 87(2)(b) says, "Don't touch my camera, don't touch my camera, don't touch me, don't touch me."

§ 87(2)(b) testified that he asked Sgt. Lora for his name and shield number. Sgt. Lora's name plate and shield were visible on his uniform, and he briefly flashed his shield at § 87(2)(b) phone. Sgt. Lora saw § 87(2)(b) recording with his phone and grabbed the phone while § 87(2)(b) held it. § 87(2)(b) told Sgt. Lora not to touch his phone. § 87(2)(b) maintained his grip on the phone. § 87(2)(b) provided Sgt. Lora's name and shield number in his original online complaint, which he learned from reviewing an earlier portion of his recording (**Board Review 19**).

Sgt. Lora testified that § 87(2)(b) asked Sgt. Lora for his name and shield number. Sgt. Lora reached out, grabbed § 87(2)(b) phone, and moved the camera toward his shield and nameplate so that § 87(2)(b) would have his identifying information recorded. Sgt. Lora denied that he touched § 87(2)(b) camera to prevent him from recording the incident.

Officers must courteously and clearly state their rank, name, and shield number, or otherwise provide them, to anyone who requests this information. NYPD Patrol Guide, Procedure 203-09 (**Board Review 12**).

Officers are prohibited from threatening, intimidating, or otherwise discouraging observers from recording a police officer's activities. Officers are prohibited from blocking or obstructing cameras or other recording devices when there is no legitimate law enforcement reason to do so. NYPD Patrol Guide, Procedure 203-29 (**Board Review 13**).

Sgt. Lora's name plate and shield were affixed to his uniform, plainly visible, and captured at several points throughout § 87(2)(b) cell phone video. However, Sgt. Lora did not verbally provide his name or shield number after § 87(2)(b) requested this information. After § 87(2)(b) asked for Sgt. Lora's name and shield number, Sgt. Lora presented his shield, but also touched the camera, causing its orientation to shift and fail to clearly capture his name and shield number.

§ 87(2)(g)
Therefore, it is recommended that **Allegations E and F** be closed as **unsubstantiated**.

§ 87(2)(g)
earlier portions of the video where § 87(2)(b) recording captures Sgt. Lora's credentials. Further, after Sgt. Lora touched the camera, the orientation of the camera shifted significantly and no longer captured his name plate § 87(2)(b).
It is therefore recommended that **Allegation G** be closed as **substantiated**.

Allegation H – Abuse of Authority: Sergeant Rachid Lora threatened to arrest § 87(2)(b)
In the cell phone recording, beginning at the 01:42 minute-mark of the media player timestamp, visible at the bottom of the screen, Sgt. Lora tells § 87(2)(b) that if he continues, the officers will

have to put him in handcuffs and bring him back to the stationhouse. § 87(2)(b) asks what he did. Sgt. Lora tells § 87(2)(b) that he is being disorderly and creating a problem for no reason, and that no one said a word to him. At 02:08, § 87(2)(b) asks if he is breaking the law. PO Pena says he is causing alarm and Sgt. Lora says he is being disorderly. At 02:30, § 87(2)(b) calls the officers “thugs” and says he hopes they are embarrassed about what they are doing. The recording ends.

§ 87(2)(b) statement was generally consistent with the cell phone recording. After the recording ended, § 87(2)(b) resumed his commute. § 87(2)(b) had no further contact with the officers and he denied that he ever obstructed anyone’s path.

Sgt. Lora’s BWC video shows numerous people stop to observe the interaction between § 87(2)(b) and the officers (see the 00:20, 01:15, and 02:00 minute-marks of the BWC video) (**Board Review 06**). The BWC video also shows numerous people turn their heads toward the interaction as they walk by (see the 00:35 and 01:35 minute-marks of the BWC video). At 01:50, PO Pena and Sgt. Lora tell § 87(2)(b) that he is causing alarm and point his attention to the people who are recording. The video does not depict any obstruction of foot traffic.

Sgt. Lora testified that this incident occurred during rush hour and said there was heavy foot traffic in the subway station. A crowd of about 10 people stopped to observe the encounter between § 87(2)(b) and the officers, and about half of those people started recording the interaction on their cell phones. The observers did not intervene in the interaction in any other way. Sgt. Lora told § 87(2)(b) that if he did not back up, he would be arrested for disorderly conduct because a crowd was gathering and blocking foot traffic. (Due to a technical failure, the audio of Sgt. Lora’s interview failed to record. Immediately following Sgt. Lora’s interview, Sgt. Lora’s statement was transcribed from memory and reviewed by the three investigators present in the interview. See the interview transcript at **Board Review 11**).

A person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance, or alarm, or recklessly creating a risk thereof, he obstructs pedestrian traffic. New York State Penal Law, Section 240.20 (5) (**Board Review 14**).

A person is guilty of disorderly conduct only when the situation extends beyond the exchange between individual disputants to a point where it becomes a potential or immediate public problem. Where bystanders merely stop to observe an encounter and there is no evidence that the bystanders expressed an inclination to involve themselves in the dispute, the public harm element of the disorderly conduct statute will not be met. People v. Baker, 20 N.Y.3d 354 (2013) (**Board Review 15**).

The video evidence shows that the attention of bystanders was drawn to the encounter between § 87(2)(b) and the officers and that some individuals stopped to record the interaction. However, the video shows that the individuals were not obstructed from walking by, and the video does not show individuals responding to the interaction in any way other than looking and recording. § 87(2)(g)

Therefore, it is recommended that **Allegation H** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 16**).

- Sgt. Lora has been a member of the NYPD for 12 years. He has been a subject in two additional complaints, totaling five allegations, none of which were substantiated § 87(2)(g)
- PO Pena has been a member of the NYPD for 21 years. This is the first complaint to which he has been a party.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of August 17, 2020, the New York City Office of the Comptroller had no record of a Notice of Claim being filed related to this incident (**Board Review 17**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 13

Investigator:	<u>SI Rolando Vasquez</u> Signature	<u>SI Rolando Vasquez</u> Print Title & Name	<u>12/5/2021</u> Date
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Investigator:	<u>IM Laura Kastner</u> Signature	<u>IM Laura Kastner</u> Print Title & Name	<u>12/06/2021</u> Date
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